



Notification Waiver Determination

Tasmea - Maxim

Acquisition	Tasmea Limited (Tasmea) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Maxim Group Australia Pty Ltd (Maxim), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	24 June 2026

Parties to the Acquisition	The acquirer, Tasmea, is an Australian diversified specialist trade-skill services group. It owns and operates 26 specialist subsidiaries providing maintenance, shutdown, breakdown and brownfield upgrade services to fixed plant for essential asset owners, primarily in the resources, energy and utilities sectors. Tasmea's electrical division or segment delivers industrial electrical, instrumentation and electrification services, principally in Western Australia, as well as Queensland, South Australia and the Northern Territory. The target, Maxim, headquartered in Alphington Victoria and operates through Maxim Electrical Services Pty Ltd and Maxim Infrastructure Pty Ltd. Maxim delivers project and construction based electrical works for data centre owners, Tier 1 builders and head contractors, including major Victorian government infrastructure programs. Maxim's services are principally acquired by data centres, transport infrastructure operators and other commercial sector projects. The parties both supply electrical services and maintenance across Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is limited horizontal overlap between Tasmea and Maxim in the supply of electrical services and maintenance across Australia, as their respective offering service different use cases and geographic regions

	b. there are alternative suppliers of the types of electrical services and maintenance offered by the parties in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**